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MAHATMA GANDI UNIVERSITY, KOTTAYAM
SECOND SEMESTER MGU-UGP (HONOURS) REGULAR EXAMINATION, MARCH 2025
Discipline Specific Course(DSC) – MG2DSCJMC101 – LEGAL REGIME ON MEDIA
(2024 Admission Onwards)

Time: 2 Hours Max. Marks : 70

Part A
Multiple Choice Questions
*Answer **all** questions. Each question carries **1** mark*

1. (d) 28
2. (d) To regulate cable television networks and operators
3. (b) Imprisonment for up to 3 years and/or fine
4. (d) Mumbai
5. (b) 10
6. (b) The regulation of online defamation
7. (d) An offence in which the police can arrest without a warrant and start an investigation without the permission of the court
8. (a) Complaints related to press ethics and violations of journalistic standards
9. (b) 3 years
10. (c) To maintain the dignity and the authority of courts

(10x1=10)

Part B
Short Answer Type Questions (100 words)
*Answer any **ten** questions. Each question carries **3** marks*

11. i) Registration of newspaper with press registrar ii) Print clearly the names of the owner and editor and also the date of its publication on every copy of the newspaper iii) Declaration by the printer and publisher of every newspaper which specifies the title of the newspaper, the language in which it is to be published, periodicity of publication etc.
12. i) To organise and conduct public broadcasting services to inform, educate and entertain the public to ensure a balanced development of broadcasting on radio and television. ii) Formulate policies and provide overall direction for the organization iii) Exercise control and supervision over AIR and Doordarshan iv) Approve the annual budget of Prasar Bharati.
13. Defamation is an injury to a person's reputation. Intention is essential for criminal liability. The object of criminal prosecution is to punish the offender by way of imprisonment or fine or with both. Whoever defames another shall be punished with simple imprisonment for a term which may extend to two years, or with fine, or with both.
14. Promoting enmity between different groups on grounds of religion, race, place of birth, residence, language, etc., and doing acts prejudicial to maintenance of harmony. Punishment prescribed for the offence is imprisonment up to 3 years, or with fine, or with both. If the offence is committed in a place of worship, the punishment may extend to 5 years.
15. i) To preserve the freedom of the press and to maintain and improve the standards of newspapers and news agencies. ii) The council is a quasi judicial body and has been vested with the powers of a civil court. iii) Inquire into complaints against the press or by the press about interference with its freedom iv) Power to warn, admonish, and censure the newspaper, news agency, editor or journalist for professional misconduct or violation of journalistic ethics v) Advises the government on any matter related to the press or journalistic freedom.
16. i) Establishment of Broadcasting Corporation for India (Prasar Bharati) and to define its

composition, functions and powers ii) To constitute Prasar Bharati Board for the general superintendence, direction and management of the affairs of the Corporation iii) To organise and conduct public broadcasting services to inform, educate and entertain the public and to ensure a balanced development of broadcasting on radio and television iv) To form a broadcasting council to receive and consider complaints and to advise the corporation in the discharge of its functions.

17. Penalty for spying - imprisonment which may extend, where the offence is committed in relation to any work of defence, arsenal, naval, military or air force establishment, mine, minefield etc., to 14 years and in other cases to 3 years. Penalty for harbouring spies - imprisonment which may extend to 3 years or with fine or with both. Wrongful communication of information - imprisonment for a term which may extend to 3 years or with fine or with both. Unauthorised use of official uniforms- imprisonment for a term which may extend to 3 years or with fine or with both. Not giving information as to commission of offences-imprisonment for a term which may extend to 3 years or with fine or with both.

18. i) Access to government records ii) Strengthens investigative journalism iii) Enhances government accountability iv) Legal backing to demand information v) Helps uncover underreported issues

19. The certificate of registration under the Press and Registration of Books Act, 1867 holds significant legal and administrative importance for newspapers and books in India. It serves as official proof that the publication complies with the requirements of the Act, including the disclosure of ownership and printing details. In case of disputes related to ownership, defamation, or other legal issues, the certificate can serve as a crucial piece of documentary evidence regarding who is responsible for the publication.

20. Failure to comply with compulsory transmission of channels can result in administrative, civil, and criminal consequences such as; i) Suspension or cancellation of registration ii) Penalties and fines iii) Criminal liability iv) Seizure of equipment.

21**.** The main object of the Official Secrets Act is to protect national security. But the law in its present form is outdated and open to misuse. It is in potential conflict with Right to Information Act. There is an urgent need to update or replace it with legislation that balances national security with democratic values like transparency, accountability and freedom of the press.

22. The penalties under the Working Journalists Act are relatively mild**,** reflecting its original intent as a welfare legislation rather than a punitive law. If any employer contravenes any of the provisions of this Act or any rule or order made there under, he shall be punishable with fine which may extend to Rs.200/-. Whoever, having been convicted of any offence under this Act, is again convicted of an offence involving the contravention of the same provision shall be punishable with fine which may extend to Rs.500/-.

(10x3=30)

Part C

Essay Type Questions (450 Words)

*Answer any **two** questions. Each question carries **15** marks*

23. i) Wage Protection – Fixation and revision of wages by the Central Government ii) Working hours and overtime wages iii) Leave and holidays iv) Protection against arbitrary dismissal v) Medical facilities vi) Gratuity and retirement benefits vii) Welfare measures

24. No person shall transmit or re-transmit through a cable service any programme or advertisement unless such programme or advertisement as the case may be is in conformity with the prescribed programme or advertisement code. **Programme code** – (1) No programme should be carried in cable service which: i) offends against good taste or decency ii) contains criticism of friendly countries iii) contains anything obscene, defamatory, deliberate, false iv) contains anything amounting to contempt of court v) denigrates children vi) is not suitable for public exhibition etc. (2) The cable operator should strive to carry programmes in his cable service which project women in a positive, leadership role of sobriety, moral and character building qualities. (3) No cable operator shall carry or include in his cable service any programme in respect of which copyright subsists unless he has been granted a licence by owners of copyright.(4) Care should be taken to ensure that programmes meant for children do not contain any bad language or explicit scenes of violence. Programmes unsuitable for children must not

carried in the cable service at times when the largest numbers of children are viewing. (5) No cable operator shall include in his cable service any channel, which has not been registered by the Central Government for being viewed within the territory of India.

Advertisement code – (1) No advertisement shall be permitted which: i) derides any race, caste, colour, creed and nationality ii) is against any provision of the Constitution of India iii) tends to incite people to crime, violence etc. iv) exploits the national emblem or any part of the Constitution v) projects a derogatory image of women vii) exploits social evils like dowry, child marriage vi) promotes the production, sale or consumption of cigarettes, tobacco products, wine, alcohol, infant milk substitutes, feeding bottle or infant foods. (2) Advertisements must not be directed towards any religious or political end. (3) The picture and the audible matter of the advertisement shall not be excessively 'loud'. (4) Advertisement which endangers the safety of children or shows them in an undignified or indecent manner shall not be carried in the cable service. (5) No programme shall carry advertisements exceeding twelve minutes per hour. (6) Indecent, vulgar or offensive themes or treatment shall be avoided in all advertisements.

Compulsory Transmission of Channels – Every cable operator shall re-transmit i) channels operated by or on behalf of the Parliament of India ii) at least two Doordarshan terrestrial channels and iii) one regional language channel of a State in the prime band. It is also the duty of the cable operator to ensure that his cable television network does not interfere with the functioning of the authorised telecommunication systems.

25. **In-camera proceedings** are court sessions held privately, without the presence of the public or media**.** A person shall be guilty of contempt of court for publishing the text or a fair and accurate summary of the whole or any part of an order made by a court sitting in chambers or in camera, if the court has expressly prohibited the publication on grounds of public policy, public order or security of state or on the ground that it contains information relating to a secret process, discovery, invention etc. In camera proceedings are usually followed in sexual offences, family disputes, national security cases etc.

A fair and accurate report of judicial proceedings refers to the responsible and unbiased coverage of court cases by the media, ensuring that the information published is factually correct and balanced. A fair and accurate report of judicial proceedings, a fair criticism of a judicial act in the interest of the public good, and a bonafide complaint concerning the presiding officer of a subordinate court do not constitute contempt of court. A judgement can be criticised as erroneous, but dishonesty on the part of the judge in delivering the judgement cannot be alleged.

Trial by newspapers has been considered by courts as interference with the proper administration of justice in pending cases. Media trial refers to the influence of media coverage on public opinion about a person or case before a court verdict is delivered. It occurs when the press or television channel**s** present their own version of events, often passing judgment before the legal process is complete. Judges and witnesses may be indirectly influenced by public opinion shaped by the media.

26. **The Central Board of Film Certification** commonly known as the Censor Board is a statutory body under the Ministry of Information and Broadcasting, Government of India. It is responsible for regulating the public exhibition of films in India. Functions of the Board: i) Preview and examine films before release ii) Grants appropriate certificates or suggests modifications or cuts before certification. iii) Enforce guidelines for the certification iv) Prevent obscene or harmful content.

Advisory Panels are supporting bodies formed under the Central Board of Film Certification to help in the examination and certification of films. These panels play a key role in reviewing and recommending the type of certificate a film should receive**.** The examining committee shall consist of a member of the advisory panel and an examining officer either of whom shall be a woman in the case of a short film and four members of the advisory panel and an examining officer of whom two persons shall be women in the case of a long film.

Suspension and Revocation of Certificate - The Central Government may, by notification in the Official Gazette, suspend a certificate granted under this Act or may revoke such certificate if it is satisfied that: i) the film in respect of which the certificate was granted, was being exhibited in a form

other than the one in which it was certified; or ii) the film or any part thereof is being exhibited in contravention of the provisions of this Act. Any person aggrieved by any order under this Section, he may within sixty days from the date of its publication in the Official Gazette, make an application to the Central Government for review of the order. On receipt of the application, the Government may, after giving the aggrieved person a reasonable opportunity of being heard and after making such further enquiry, pass such order confirming, modifying or reversing its decision and the Board shall dispose of the matter in conformity with such order.

(2x15=30)